

CONSTITUTION OF THE HEALTH CLAIMS FORUM

- 1 THE name of the Forum shall be “**THE HEALTH CLAIMS FORUM**”, hereinafter called “the Forum”.
- 2 THE OBJECTS OF THE FORUM SHALL BE:
 - a) To improve claims management through the sharing of knowledge and experience to the benefit of Members, their policyholders and Associate Members.
 - b) To provide opportunities for discussing matters of common interest amongst the Members and Associate Members by arranging meetings and training sessions (hereinafter called “Forum days”);
 - c) To provide a recognised Committee to respond to and promote development affecting the industry;
 - d) To promote awareness between Members and Associate Members and service providers;
 - e) To liaise with other industry organisations.
 - f) The Forum will also promote healthy competition between members providing similar services. Forum Members will not use their membership to agree standard price structures or to attempt to form cartels. Any member(s) found to have formed or tried to form a cartel or to induce other members to join such a cartel will be liable to expulsion from the Forum in accordance with Sections 10(a) and 11 below.

3 MEMBERSHIP

a) Full Membership

Full Membership will be restricted to UK and Irish insurers, Friendly Societies and reinsurers involved in the field of Income Protection Insurance, Waiver of Premium Disability Insurance, Personal Accident Insurance, Critical Illness Insurance, Total Permanent Disability Insurance and Life Assurance.

In addition, membership may be extended to Third Party Administrators actively managing a book of business on behalf of any insurer, Friendly Society or reinsurer as detailed above, and providing assessment services to the satisfaction of the Forum committee.

b) Associate Membership

Associate Membership will be restricted to those organisations that provide services to the aforementioned full members including but not limited to:-

- Claims Visitors
- Private Investigators;
- Legal Services;
- Medical Services;
- Employment Consultants;
- Vocational rehabilitation specialists;
- Financial Ombudsman Service.

Associate membership is subject to the following rules.

- i. Attendance of associate members at any Forum meeting may be limited at the discretion of the committee and the decision of the committee is final. There is no undertaking that each associate member will be able to attend each Forum.

- ii. Associate members undertake never to advertise membership of the Forum in order to promote services or for any other reason.
- iii. Associate membership does not entitle access to a list of members for mailing or marketing purposes.
- iv. Associate members cannot vote or become committee members.
- v. Associate membership is at the discretion of and is subject to review by the committee and can be terminated by the committee of the Forum without notice. The decision of the Committee is final.
- vi. Associate membership in no way means that the Forum or the Committee recommends the associate member as a service provider to members or others and the committee accepts no responsibility or liability in this regard.

c) Overseas Membership

Applications for Membership from Insurers or Reinsurers based outside the UK and Ireland, involved in the field of Income Protection Insurance, Waiver of Premium Disability Insurance, Personal Accident Insurance, Critical Illness Insurance, Total Permanent Disability Insurance and Life Assurance, will be considered at the discretion of and subject to review by the committee.

Membership in this category will be restricted to that of Associate Members only.

4 ELECTION OF MEMBERS

- a) Organisations wishing to join the Forum shall make a written application to the Committee.
- b) The application will be considered by a Sub-Committee of not less than three Committee Members.
- c) The requirement to take up references and make other enquiries as appropriate would be at the discretion of the Sub-Committee.
- d) The Sub-Committee will make recommendations to the Committee as to whether to accept or decline or defer an application. The final decision regarding membership lies with the Committee and in the event there are even votes, the Chairman shall decide.
- e) Unsuccessful applicants will be advised why their application has been declined or deferred.

5 ADVERTISING / RECRUITMENT

- a) Subject to the payment of an advert fee (as set out in section 6 below), each full or associate member office will be permitted to post, on the HCF website; any claims job vacancy or advertise the services they provide.
- b) Any advert will be removed from the HCF website, immediately the period covered by the fee paid has lapsed. The member office may extend the advert for a further period, upon full payment of a further advert fee.

6 SUBSCRIPTIONS AND FEES

- a) Each member organisation whether Full, Associate or an Overseas member (as set out in section 3) will be required to pay an annual subscription. The annual subscription falls due on 1st January of each year.
- b) The amount of the annual subscription that would apply for each membership type will be agreed by the committee and proposed at the Annual General Meeting immediately preceding the subscription due date.
- c) The amount of the advert fee that would apply for hosting any claims job vacancy or any associate member service advert will be agreed by the committee and proposed at the Annual General Meeting.
- d) Each attendee from a full member or associate member office will pay an attendance fee when they attend a Forum Day.
- e) The amount of the attendance fee will be agreed by the committee and proposed at the Annual General Meeting.
- f) No refund in attendance fees will be available if cancellation is made less than one week before the date of any Forum meeting. Where more than one week notice is provided then either a refund or a credit to a future Forum can be applied. Any alterations or changes in the name of the delegate attending can be made right up until the day of the Forum.
- g) Continued membership, of the Forum, for organisations that fail to pay attendance, annual subscription or advert fees within three calendar months, will be at the discretion of the Committee. The Committee may cease an organisations membership of the Forum by majority vote, as set out in section 11. The decision of the Committee is final.
- h) Applications for reinstatement shall be at the discretion of the committee, subject to payment of all outstanding fees upon application.

7 THE COMMITTEE

- a) The Committee membership aims to be a broad, fair and balanced representative of the Full membership and shall comprise of:-

- (i) Chairman
- (ii) Vice Chairman
- (iii) Secretary
- (iv) Treasurer
- (v) IT Officer

The committee officers may decide the number of other Committee Members appropriate at that time but this will be no less than four and no more than nine.

There is no specified term for an elected committee member. The term for each elected officer shall be two years. The term of an officer can be extended with the agreement of the committee. The Vice Chairman will automatically succeed the retiring Chairman.

- b) The Committee will be elected at the Annual General Meeting by a vote of Members present. Full Members wishing to put a representative forward for election must put their name forward in writing together with the name of a Full Member representative who will propose their election and the name of a Full Member representative who will second the proposal. This must be received by the committee no later than six weeks prior to the AGM.
- c) The application will be considered by a Sub-Committee of not less than three Committee Members.
- d) The requirement to take up references and make other enquiries as appropriate would be at the discretion of the Sub-Committee.
- e) The Sub-Committee will make recommendations to the Committee as to whether to accept or decline or defer an application. The final decision regarding membership lies with the Committee and in the event there are even votes, the Chairman shall decide.
- f) Unsuccessful applicants will be advised why their application has been declined or deferred.
- g) There will be no more than two representatives on the committee from each Full Member at any time. *See also point (h).*
- h) When there is a change in a Committee Member's employment and/or role, the Committee has the right to review the appropriateness of the member holding a position on the Committee. In such circumstances the Committee may cease an individual's membership of the Committee by majority vote. *See also point (g).*
- i) Committee members to comply with committee commitment agreement. Each committee member should:-
- (i) attend, in person, at least 3 committee meetings per year;
 - (ii) attend at least 3 Forum days per year;
 - (iii) participate on, at least one, Forum organising sub-committee per year and fully contribute to the organising of the Forum day; plus
 - (iv) undertake any other duties, ad hoc meetings or other events held by the Forum.

Should a committee member not comply with the above agreement, then the Committee has the right to review the appropriateness of the member holding a position on the Committee. In such circumstances the Committee may cease an individual's membership of the Committee by majority vote. The decision of the Committee is final.

- j) Upon the resignation of a committee member or departure under clauses 7(g) to 7(i) that committee membership will not automatically remain with that committee members company. Any election of a replacement will be at the discretion of the committee and will follow the process as set out in clauses 7(b) to (e) of the constitution.

8 ANNUAL GENERAL MEETING

- a) An Annual General Meeting will be held each year.
- b) Members will be given at least four weeks' notice in writing of the Annual General Meeting.
- c) Each Full Member organisation will be entitled to be represented at the Annual General Meeting. Only one representative, per member organisation will have the right to vote.
- d) Ten or more Full Members present will form a quorum.
- e) Decisions will be made by a majority vote. In the event of a stalemate the Chairman will have the deciding vote.
- f) The Annual General Meeting will:-
 - (i) Receive a report from the Chairman on the activities of the Forum in the preceding year and consider adoption of the report.
 - (ii) Receive a report from the Secretary/Treasurer on the financial position of the Forum and consider the adoption of the accounts for the preceding financial year.
 - (iii) Agree annual subscriptions, attendance and advertising fees, to be charged, for the following year.
 - (iv) Review the Committee structure and elect new officers where appropriate.
 - (v) Consider revision and alteration of rules.
 - (vi) Consider such other business as shall be specified in the notice convening the meeting.

9 COMMITTEE MEETINGS

- a) The Committee will meet at least four times a year or more frequently at the Committee's discretion. The Committee will consider applications for membership as set out in 3 and 4 above.

- b) The Committee will consider applications for membership of the committee as set out in 7 above.
- c) The Committee will consider disciplinary matters in accordance with 11 below.
- d) The Committee will organise meetings of the Forum and arrange other events.
- e) The Committee will liaise with other industry organisations.
- f) Decision making will be by majority vote with the Chairman holding the casting vote. Quorum is Four.

10 MEMBERS CODE OF CONDUCT

- a) To perform all professional duties in accordance with highest ethical standards and abide by all applicable antitrust legislation in any jurisdiction.
- b) To respect the privacy of other full Members, Associate Members and clients and to ensure that procedures are in force to protect privacy and to prevent inadvertent disclosure of private information.
- c) To comply with the rules of all regulatory authorities.
- d) To comply with the rules as Associate Members

11 DISCIPLINARY MATTERS & TERMINATION OF MEMBERSHIP

- a) All Members of the Forum are expected to behave in an ethical and professional manner at all times. The Committee will have the power to expel from membership any Member deemed to have acted unethically or unprofessionally or whose actions have been injurious to the reputation or interests of the Forum.
- b) Membership will automatically be terminated on the happening of the following events:-
 - (i) a Member organisation going out of business;
 - (ii) the bankruptcy of a Member organisation;
- c) In the event of a complaint about a Member the Committee will form a Sub-Committee, as set out in 4(b) to consider the complaint, hear evidence and make a recommendation to the Committee.
- d) Any Member may resign membership of the Forum on giving notice to the Secretary and paying all arrears due, if necessary.

The Member will have the right to see all the evidence considered and to make personal representations to the Committee before a final decision is made. The member will be informed in writing of the Committee's decision and the reasons for the decision.